D. Skylar Rosenbloom
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February 13, 2026

CC: MV/LE
LA PUBLIC SERVICE COMM
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Via Hand Delivery
Ms. Krys (Kris) Abel
Business Technology Supervisor
Records and Recording Division
Louisiana Public Service Commission
Galvez Building, 12th Floor
602 North Fifth Street
Baton Rouge, LA 70802

Re: Application of Entergy Louisiana, LLC for Approval of Generation and Transmission Resources Proposed in Connection with Service to a Single Customer in North Louisiana (LPSC Docket No. U-37425)

Dear Ms. Abel:

Enclosed for further handling is an original and three copies of Entergy Louisiana, LLC's Memorandum in Opposition to Motion of the Alliance for Affordable Energy and Union of Concerned Scientists for Investigation and Prudence Review and Exhibit A. Please retain the original and two copies for your files and return a date-stamped copy to our courier.

Please note that Exhibit A contains information that is designated Highly Sensitive Protected Material ("HSPM"), which is being provided to you under seal pursuant to the provisions of the LPSC General Order dated August 31, 1992, and Rules 12.1 and 26 of the Commission's Rules of Practices and Procedures. The confidential materials included in the exhibit consist of competitively sensitive information and customer-specific confidential information. For this reason, this material is confidential and commercially sensitive. The disclosure of the information contained herein would subject not only the Company, but also its customer, to a substantial risk of harm. Accordingly, it is critical that this information remain confidential.

Please retain the appropriately marked Confidential Version for your files and return a date-stamped copy to our courier. Additional copies of the Confidential Version of this filing will be provided to the appropriate representatives of the Louisiana Public Service Commission Staff and made available to intervenors who have executed the relevant Confidentiality Agreement.

Thank you for your assistance with this request. If you have any questions, please feel free to call me.

Sincerely,

D. Skylar Rosenbloom

DSR/kl
Enclosure
cc: Official Service List in this docket (*via electronic mail only*)

Hand

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BEFORE THE

LOUISIANA PUBLIC SERVICE COMMISSION

APPLICATION FOR APPROVAL OF GENERATION AND TRANSMISSION RESOURCES IN CONNECTION WITH SERVICE TO A SINGLE CUSTOMER IN NORTH LOUISIANA	)))))	**DOCKET NO. U-37425**

ENTERGY LOUISIANA, LLC'S MEMORANDUM IN OPPOSITION TO MOTION OF THE ALLIANCE FOR AFFORDABLE ENERGY AND UNION OF CONCERNED SCIENTISTS FOR INVESTIGATION AND PRUDENCE REVIEW

Entergy Louisiana, LLC ("ELL" or the "Company") submits this opposition to the Motion for Investigation of the New Financial Arrangement of Meta Platforms, LLC Associated with the Hyperion Data Center Project in Richland Parish, and Motion to Institute Prudence Review of Entergy Louisiana, LLC (the "Motion") filed by the Alliance for Affordable Energy and Union of Concerned Scientists (collectively, "NPOs"). The NPOs' Motion rests upon the false premise that a structured financing by Laidley, LLC ("Laidley" or the "Customer") somehow relieves Meta Platforms, Inc. ("Meta") – one of the ten largest companies in the world at the time of filing with a market capitalization in excess of $1.5 trillion – from its unconditional and irrevocable guaranty of Laidley's obligations under its electric service agreement with ELL. As detailed below, however, Meta remains fully bound by that guaranty regardless of who owns Laidley *or even whether Laidley continues to exist*. The NPOs offer no evidence to the contrary, nor could they, and appear to premise their entire motion upon the inclusion of the word "Parent" in the title of the four-page guaranty document. But it is the terms of the document, not its title, that determine its effect, and those terms plainly maintain the protections of the guaranty regardless of whether

Meta is Laidley's direct and sole parent. The NPOs' Motion also represents an improper collateral attack on a final Commission Order and should be rejected on that basis alone. While the NPOs' Motion may have succeeded in its apparent purpose of alarming the public with incorrect statements about Meta's private financing arrangements, it seeks relief that is entirely unsupported by law or fact and wholly inappropriate. For these reasons, and as more fully set forth below, the NPOs' Motion should be denied.

INTRODUCTION

To state this unequivocally, the recent change in the Customer's ownership structure does not and cannot relieve Meta from its unconditional and irrevocable guaranty of the Customer's obligations under the electric service agreement with ELL. Following the Commission's approval of the Settlement in this docket:

- There have been no amendments to the Electric Service Agreement ("ESA") or any other related agreements (collectively the "Service Agreements") with Laidley;
- Nothing has occurred that has impaired Meta's unconditional and irrevocable guarantee of the Customer's obligations;[1] and
- There have been no changes to the unprecedented level of customer protections and benefits for other customers that arise from both the Service Agreements and the Company's Settlement Agreement with Commission Staff and other intervenors.

More plainly said, the deal the Commission approved is still the deal. Agreements regarding the Customer's financing for its project that are outside of the purview of the Commission have not and, as the NPOs surely know or easily could have gleaned from simply reviewing the terms of the four-page guaranty agreement, cannot change that.

The NPOs opposed the Company's application in this proceeding. Unlike the Sierra Club and Southern Renewable Energy Association, which mounted similar arguments against the

[1] Meta has increased the amount of its unconditional guaranty of the Customer's obligations as required by the Service Agreements.

Company's application, the NPOs elected not to sign onto the settlement agreement between the Company and Staff that the Commission, in Order No. U-37425, ultimately approved. The NPOs chose not to appeal that order. Nonetheless, months later, the NPOs' have filed the Motion, seeking to re-litigate this final, non-appealable Order. They base their motion upon false accusations and erroneous legal conclusions—offered by a non-lawyer—that are simply lacking in merit. Notably missing from the NPOs' Motion is any specifically identified deficiency in Meta's guaranty or any factual support for the NPOs' remaining claims and conclusions. Instead, the NPOs, seemingly relying solely on the existence of the word "parent" in the title of the guaranty agreement and the Customer's new project financing arrangement under which Meta is no longer the direct, sole parent of the Customer entity, suggest that these developments somehow call into question whether the protections of the ESA – and in particular Meta's guaranty of the Customer's obligations – remain effective. They do.

The simple fact is that Meta has secured outside financing for the Richland Parish data center project. While the structured financing arrangements at issue are complex and the timing of their announcement was close to the date of the Commission's decision, these arrangements do not and cannot relieve Meta of its *irrevocable and unconditional* obligations under the guaranty to backstop the Customer's obligations under its electric service agreement with ELL. Meta certainly did not hide these financing arrangements.[2] And companies routinely seek and secure outside funding for their projects that ultimately utilize and depend upon electricity. These financial

[2] NPOs attempt to portray the project financing as a secretive or vaguely nefarious undertaking hidden from the Commission and the public. However, Meta publicly announced the arrangement the day it occurred in October 2025. *See* META, *Meta Announces Joint Venture With Funds Managed by Blue Owl Capital to Develop Hyperion Data Center* (Oct. 21, 2025), https://about.fb.com/news/2025/10/meta-blue-owl-capital-develop-hyperion-data-center/. It was also covered by major media outlets the same day; for example, CNBC published an article on the arrangement the day of Meta's announcement. *See* Jonathan Vanian, *Meta partners with Blue Owl Capital on $27 billion AI data center project*, CNBC (Oct. 21, 2025), https://www.cnbc.com/2025/10/21/meta-blue-owl-capital-partner-on-27-billion-ai-data-center-project-.html.

decisions made by private enterprises are beyond the purview of the Company and outside the jurisdiction of this Commission, as was the case here. ELL had no involvement—nor should it have—in Laidley's financing plans for its project. But more importantly, a company's private choice of how to finance and fund its projects does not somehow automatically serve to alter the underlying terms and conditions of a customer's utility service. Rather, ELL structures those terms and conditions to ensure reasonable protections for the interests of its other customers without regard to what financing or other business activities the customer at issue may undertake over the term of its electric service agreement – and certainly did so here. The unprecedented customer protections and benefits achieved for ELL's customers through the Service Agreements and the Settlement Agreement that were approved by the Commission, including the unconditional and irrevocable Meta guaranty of the Customer's obligations, remain in place and unchanged. The relief sought by the NPOs Motion should be rejected.

DISCUSSION

A. The Service Agreements Remain Unchanged

NPOs' Motion rests entirely on the false premise that Meta's financing arrangement with Blue Owl Capital (the "Financing Agreement") has somehow invalidated or otherwise changed the Service Agreement between the Customer and the Company and impaired the guaranty of the Customer's obligations by Meta. The NPOs nowhere explain how this result arises under the relevant contractual terms. And it is simply not the case.

Relying upon misdirection, the NPOs' Motion attempts to create the impression that the Financing Agreement altered the Company's agreements with Customer. For example, the NPOs'

filing suggests that the initial term of the ESA has been drastically altered from 15 years to 4 years.[3] However, not even the NPOs' cited witness testimony supports this interpretation, and it is false. Rather, the witness correctly identifies the ESA between the Customer and the Company as "a 15-year agreement."[4] In fact at no point in her testimony does the NPOs' witness contend that the Service Agreements have been altered or invalidated by the Financing Agreement, nor could they be. At best, the NPOs' assertions or insinuations to the contrary are nothing more than baseless conjecture that present no reasonable or even rationale basis for re-litigating this proceeding.

Simply put, there have been no amendments to any of the Service Agreements that were not disclosed to the Commission and all intervenors, including the NPOs, during the course of the docket. The Service Agreements considered by the parties, which resulted in settlement with Commission Staff and numerous intervenors and which were available for consideration by the Commission ahead of its acceptance of that Settlement Agreement, remain the only agreements between the Company and the Customer with respect to the Customer's Richland Parish data center project. The robust protections for other ELL customers inherent in those Service Agreements – including Laidley's ongoing contributions in aid of construction and the unconditional and irrevocable guaranty of the Customer's obligations by Meta – one of the 10 largest companies in the world by market capitalization and an S&P credit rating of AA- – are fully in place and unchanged. Thus, there has been no change in the Service Agreements which

[3] *See* NPO Motion at 10 asserting that "instead of being bound by an initial term of 15 years, Meta is leasing the data center and can walk away after only 4 years. The ESA term originally constituted meager protection for ratepayers and now is no protection at all." The NPOs thus conclude that the implementation of the lease arrangement somehow shortens or eliminates the 15-year term of the ESA without ever explaining how. The implementation of the lease does not affect the 15-year term of the ESA or the guaranty that supports it. The ESA and guaranty are contracts between ELL on the one hand, and Laidley and Meta, respectively, on the other that are not and cannot be altered by a lease agreement between Laidley and a third-party financing company.

[4] *See* Supplemental Testimony of Cathrine Kunkel, p. 5:1.

even supports, let alone reasonably warrants, the Commission permitting the NPOs to relitigate the outcome of the final order in this docket.

B. Meta's Guaranty Remains Unchanged and Continues to Protect Customers

Meta's guaranty of the Customer's obligations is irrevocable and unconditional and in no way dependent upon the organizational structure of the Customer or even the continued existence of the Customer, a deliberate choice that provides significant customer protection for this arrangement. Per the terms of the guaranty, a copy of which is attached as Exhibit A, and which the NPOs have had in their possession for almost a full year, Meta "irrevocably and unconditionally guarantees" all payments owed by the Customer to ELL. Further, such guaranty is "continuing and unconditional and **will not be discharged . . . irrespective of** . . . (5) the **dissolution, winding up, liquidation or insolvency of" the Customer.**[5] Thus even if the Customer were to entirely cease to exist, Meta remains obligated to ELL for the entirety of the payments and other obligations in the Service Agreements. Third-party project financing, changes to the corporate ownership structure, or even existential changes to the Customer entity itself have no impact on Meta's guaranty of the Customer's obligations. The confection of the Financing Arrangement does not trigger the need or mandate for a new guaranty from any other entity, nor has it been shown that securing similar guaranty obligations from Blue Owl or any other entity would even offer additional credit protection above the enormous amount of such protection that already exists. The NPOs have had this four-page guaranty agreement available to them for nearly a year. The terms at issue are simple and straightforward. These circumstances reasonably call

[5] Meta guaranty pp. 1-2, attached hereto as Exhibit A.

into question whether the Motion is being urged in good faith and whether it has any purpose other than to bolster the NPOs' publicity campaign of opposition to the Customer's project.[6]

That there is no actual problem or concern with Meta's guaranty is readily apparent from the NPOs' fundamental failure to identify one. The form of the guaranty was included in the confidential version of the filing in the underlying litigated proceeding in October 2024.[7] Meta's executed guaranty was provided to all parties in discovery shortly after execution in March 2025, and a public version of Meta's guaranty was filed as an exhibit to the Company's reply brief in further support of the Settlement Agreement which was ultimately approved by the Commission.[8] The guaranty is four pages long, and its simple and unequivocal terms do not require special expertise to interpret. And yet, despite having more than a year with the language of Meta's guaranty, the NPOs have failed to identify a single specific question, issue, or concern with the terms of the guaranty or the protections it provides. Again, nowhere do the NPOs explain or articulate specifically how the Financing Arrangement somehow undermines the guaranty's protections.

Rather the NPOs have resorted to recycling the very abstract concerns about Meta's guaranty that were raised at the hearing of this matter, that the NPOs raised in opposition to the

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[6] *See, e.g.,* EARTHJUSTICE, *Louisiana Regulators Asked to Investigate Shady Meta Financing Deal That Could Leave Households Paying for Tech Giant's Electricity* (Jan. 14, 2026), https://earthjustice.org/press/2026/louisiana-regulators-asked-to-investigate-shady-meta-financing-deal-that-could-leave-households-paying-for-tech-giants-electricity; UNION OF CONCERNED SCIENTISTS, *Meta's New Data Center Financial Arrangement Puts Louisianans at Higher Risk of Shouldering Costs of Stranded Assets* (Jan. 14, 2026), https://www.ucs.org/about/news/metas-new-data-center-agreement-increases-risk-stranded-assets; ALLIANCE FOR AFFORDABLE ENERGY, Press Release (Jan. 16, 2026), https://www.all4energy.org/watchdog/metas-new-data-center-financial-arrangement-puts-louisianans-at-higher-risk-of-shouldering-costs-of-stranded-assets/.

[7] Direct Testimony of Laura K. Beauchamp, Exhibit LKB-2, filed on October 30, 2024.

[8] See the Company's response to LEUG 12-2 produced on March 27, 2025 and public exhibit A to Entergy Louisiana, LLC's Omnibus Reply to the Opposition to the Alliance for Affordable Energy and Union of Concerned Scientists to (1) the July 11, 2025 Contested Settlement and (2) Joint Motion for Approval of the July 11, 2025 Contested Settlement Pursuant to Rule 57. The sole redaction to the public exhibit is the limit of the guaranty.

proposed settlement in this docket,[9] and that the NPOs voiced at the Commission meeting where the settlement was considered and approved by the Commission.[10] This issue has been exhaustively litigated and considered by the Commission ahead of approval of the Settlement Agreement. After having heard and considered the NPOs' arguments on the issue, the Commission opted to accept the Settlement Agreement, finding the proposed investments to be in the public interest.[11] Nothing has happened or changed to warrant relitigating these issues five months after the Commission's final order in this docket – and NPOs' Motion should be denied.

The NPOs' argument is lacking in merit on its face. The NPOs' entire argument, per their Motion, is that "there is no longer an enforceable parent guaranty since Meta is no longer the parent of Laidley."[12] This conclusion has no merit, and the NPOs fail to elucidate how they arrived at it. While that leaves the Commission only to speculate as to the NPOs' reasoning, it appears predicated upon the use of the term "parent" in the title of the guaranty agreement. But the term "parent" appears only in the title of Meta's unconditional guaranty and in no other place – and simply reflects the general type of contract it is. There is no language anywhere else in the agreement that can be used to remotely suggest, argue, or otherwise claim that Meta's guaranty is contingent upon its status as parent of Customer, either from the outset or at any time in the future.[13] The NPOs' argument disregards the plain language of the guaranty and does not justify

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[9] *See* Opposition of the Alliance for Affordable Energy and Union of Concerned Scientists to the July 11, 2025 Contested Settlement filed on August 15, 2025.

[10] *See* Transcript of the Louisiana Public Service Commission Business and Executive Open Session held on August 20, 2025, pp. 84-90.

[11] See Exhibit A to Order No. U-37425.

[12] NPOs' Motion at p. 16.

[13] As noted above, not even the dissolution of the Customer would adversely impact Meta's obligations under the guaranty.

relitigating a final, non-appealable Commission Order which was issued after already considering NPOs' same concerns regarding the guaranty.

More importantly, the guaranty from Meta, along with the significant pre-payments from the Customer that have occurred and are scheduled to occur, serve to protect ELL and its other customers from any meaningful exposure should the Customer's project not come to fruition. While the level of protection fluctuates some over time, the transaction was structured in such a manner as to provide adequate protection at all times in the event that the Customer terminates the agreement ahead of taking service. As of the filing of this memorandum, ELL holds an executed guaranty from Meta and has received Customer contributions that collectively provide protection well above the level of ELL's committed expenditures. As detailed extensively above, these protections remain in place regardless of the Financing Arrangement and regardless of whether Meta is the Customer's parent in whole or in part or at all.

C. NPOs' Motion Seeks Unprecedented and Extra-Jurisdictional Commission Involvement in the Commercial Affairs of Unregulated Entities

The balance of the NPOs' Motion not only demands access to the private, trade secret, and commercially sensitive data of a utility customer (and their affiliated organizations) but also seeks for the Commission to inject itself into the financial decisions of these private, non-utility enterprises. The NPOs' demands not only lack merit but also can be dismissed out of hand as being well beyond the jurisdiction of the Commission. Recognizing there is no Commission jurisdiction over the Customer's private financing or other business activities in which the Customer may choose to engage over the 15-year term of the ESA, ELL put in place the guaranty and other expansive credit protections that reasonably insulate ELL and its other customers from any adverse credit impacts resulting from the Customer's business activities. Because of these protections, and their durability, the Commission and ELL are liberated from any need to monitor

the Customer's business activities, including any financing activities it may undertake now or in the future. The record of this matter shows that the Commission carefully considered these protections in reaching its ultimate determination that the resources and investments presented in the Company's Application were in the public interest – a determination that is now final.[14]

This is not the first time the NPOs have demanded access to the highly sensitive, commercially and competitively sensitive, trade secret information of a customer and its affiliated entities. The NPOs repeatedly attempted to do the same throughout the underlying proceeding and were rightly rebuffed.[15] The result should be the same here, and NPOs' demands should be rejected. The NPOs' relentless pursuit of the Customer's confidential business information persists even after the issuance of a Commission Order, and to entertain the NPO Motion would send a hostile message to prospective customers looking to locate to or expand their projects in Louisiana. That message would be that merely agreeing to onerous credit protections in favor of the utility and its other customers is inadequate – and that the price of admission to receive electric service in Louisiana is that a customer and its affiliates must divulge their most competitively sensitive, proprietary commercial and operational information to any party who merely satisfies the Commission's permissive intervention rules. And not only must that intrusion be tolerated at the time service is requested but also it must be permitted later, anytime an intervenor becomes concerned that the customer's business activities have created risk – and without even the

[14] See, e.g. Order No. U-37425 (Aug. 29, 2025), pp. 7-8, quoting Commissioner Foster Cambell's motion to approve the settlement between ELL, Commission Staff and other intervenors: "I want to commend the LPSC Staff for working with Entergy and other parties to bring a settlement to the Commission that authorizes construction of generation and transmission to support Meta's data center in Holly Ridge, Louisiana, while imposing numerous protective conditions to mitigate the risk that other electric customers throughout Louisiana will be adversely impacted."

[15] *See, e.g.,* the NPOs' filing in Docket No. U-37425, The Alliance for Affordable Energy and Union of Concerned Scientists' Motion for Subpoena for the Production of Documents (June 18, 2025); *see also* from Docket No. U-37425, Ruling on Meta Platforms, Inc.'s Motion to Quash Subpoena (July 10, 2025) (quashing the NPOs "eleventh-hour subpoena" to Meta).

articulation of a coherent rationale for such risk. As prospective customers consider various states, including Louisiana's immediate neighbors, as locations for their business expansions, this prospect of being required to expose competitively sensitive information – if entertained by the Commission – is likely to have a material impact on prospective customers' decision-making – and place Louisiana at a meaningful competitive disadvantage. The Commission's long-standing policy and practice is to safeguard customer specific information from public disclosure and that applies to all customers, whether a data center, small business or homeowner. As a key policymaker and gatekeeper to Louisiana's economic resurgence, the Commission should reject this misguided effort and not permit self-appointed organizations with widely varying interests unrelated to Louisiana's success and economic future to create pointless headwinds to improving the state's prosperity. The NPOs' renewed demand for a subpoena to an entity outside the jurisdiction of the Commission should be quashed, sending an appropriate signal for future proceedings that these tactics will not be accepted.

D. NPOs' Motion is an Improper Collateral Attack on a Final Commission Order

Order No. U-37425 was issued on August 29, 2025. No party, including the NPOs, sought rehearing or appealed the Order consistent with the law.[16] That Order is now final and non-appealable. The NPOs' Motion constitutes an improper collateral attack on Order No. U-37425. As noted by the Louisiana Supreme Court:

> No principle of law has received greater and more frequent sanction, or is more deeply imbedded in our jurisprudence, than that which forbids a collateral attack on a judgment or order of a competent tribunal, not void on its face *ab initio*.[17]

[16] La. R.S. 45:1192 states that an appeal of a Commission Order must be filed within "forty-five days after the order made by the commission becomes effective . . . ." Order No. U-37425 was effective August 29, 2025. The deadline to file an appeal of this Order was October 13, 2025.

[17] *Allen v. Commercial Nat. Bank*, 147 So.2d 865, 868 (1962). *See also Salles v. Salles*, 928 So.2d 1, 5 (La. App. 1 Cir 12/2/05) (quoting same).

The NPOs participated in the litigated proceeding leading to the issuance of Order No. U-37425. The NPOs had the opportunity to appeal that Order to a court of law and chose not to do so. NPOs have missed their opportunity to challenge this Order and cannot do so now. Allowing any party aggrieved by an order to renew its challenge to the order in perpetuity simply because it so desires or because it serves the party's interests would mean there is no finality to any matter before the LPSC, an outcome contrary not only to settled law but also to public policy and the public interest. NPOs' Motion should be dismissed as an improper procedural attack on a final, non-appealable order of this Commission.

CONCLUSION

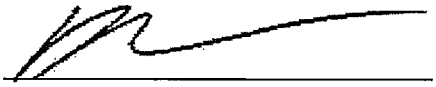
NPOs' allegations that the Financing Arrangement has somehow put either ELL or its customers at risk are lacking in merit – and indeed, lacking any basis whatsoever. The Customer's obligations under the Service Agreements remain fully backstopped by an unconditional and irrevocable guaranty from Meta, a company with a market capitalization in excess of $1.5 trillion and a rock solid credit rating. These historic commitments and customer protections remain unchanged by the Financing Agreement and will remain unchanged regardless of the financing method used for this project or the Customer's ownership structure (or even its continued existence).

The reality is that utility customers routinely utilize a wide variety of different financing arrangements to facilitate their projects – projects that deliver jobs and economic growth to the State of Louisiana. How a customer may choose to secure funding to enable its project is a commercial decision for the customer and falls outside the purview of both their utility and the Commission. To protect itself and its customers, the Company secures reasonable credit protections as part of any electric service agreement, and Meta's service arrangement in this case

is no different in this regard. These credit protections help ensure that the Customer's obligations to ELL are satisfied regardless of what changes the Customer may make to its project or its financing terms, whether in the near term or over the 15-year term of its service agreement. The NPOs' suggestion that ELL somehow misled the Commission is utterly without merit and false.

The Service Agreements represent a monumental win both for the State of Louisiana and ELL customers. These commitments tell the world that Louisiana is open for new business on a global scale and protect the interests of ELL's other customers. Not only are there robust credit protections but also there are $650 million in savings for ELL's other customers during the term of the electric service agreement. The NPOs' attempts to rehash their previously raised and rejected arguments and their baseless allegations in an attempt to relitigate this matter should be rejected.

Respectfully submitted,

By: 

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ATTORNEYS FOR
ENTERGY LOUISIANA, LLC

CERTIFICATE OF SERVICE

LPSC Docket No. U-37425

I hereby certify that the foregoing pleading was served on all parties of record listed on the Official Service List through electronic delivery.

New Orleans, Louisiana, this 13th day of February 2026.

D. Skylar Rosenbloom

Parent Guaranty

FORM OF BUYER'S GUARANTY

PARENT GUARANTY

4/1/2025

To:

Entergy Louisiana, LLC
9585 Pecue Blvd
Baton Rouge, LA 70810
Attention: Dir, Project Management – Capital Projects
laed@entergy.com

Ladies and Gentlemen:

In consideration of Entergy Louisiana, LLC(hereinafter "Counterparty") having entered into or entering into that certain Agreement For Contribution In Aid Of Construction and Capital Costs dated as of 9/30/2024 with Laidley, LLC (hereinafter "Obligor") (such Agreement For Contribution In Aid Of Construction and Capital Costs hereinafter the "Agreement"), Meta Platforms, Inc. a Delaware Corporation. (hereinafter "Guarantor"), hereby irrevocably and unconditionally guarantees to Counterparty, with effect from the date of the Agreement, the due and punctual payment of all amounts payable by Obligor under the Agreement (the "Guaranteed Obligations") when the same shall become due and payable, whether on scheduled payment dates, upon demand, upon declaration of termination or otherwise, in accordance with, and subject to, the terms of the Agreement and giving effect to any applicable grace period. Upon failure of Obligor punctually to pay any such amounts after the passage of applicable notice and cure periods, and upon written demand by Counterparty to Guarantor at its address set forth below the signature block of this guaranty (the "Guaranty") (or to such other address as Guarantor may specify in writing) in accordance with the demand procedures described in more detail below, Guarantor agrees to pay or cause to be paid the Guaranteed Obligations; provided that delay by Counterparty in giving such demand shall in no event affect Guarantor's obligations under this Guaranty. This Guaranty is a guarantee of payment and not of collection.

NOTWITHSTANDING ANYTHING TO THE CONTRARY HEREIN OR ANYWHERE ELSE, GUARANTOR'S MAXIMUM CUMULATIVE LIABILITY TO COUNTERPARTY OR ANY OTHER PERSON OR ENTITY BY, UNDER, OR WITH RESPECT TO THIS AGREEMENT WILL NOT EXCEED [redacted].

Guarantor hereby agrees that its obligations hereunder shall be continuing and unconditional and will not be discharged except by complete payment of the Guaranteed Obligations, irrespective of (1) any claim as to the Agreement's validity, regularity or enforceability or the lack of authority of Obligor to execute or deliver the Agreement; or (2) any change in or amendment to the Agreement; or (3) any waiver or consent by Counterparty with respect to any provisions thereof;

or (4) the absence or existence of any action to enforce the Agreement, or the recovery of any judgment against Obligor or of any action to enforce a judgment against Obligor under the Agreement; or (5) the dissolution, winding up, liquidation or insolvency of Obligor, including any discharge of obligations therefrom; or (6) any similar circumstance which might otherwise constitute a legal or equitable discharge or defense of a guarantor generally.

Guarantor hereby waives diligence, presentment, demand on Obligor for payment or otherwise (except as provided hereinabove), filing of claims, requirement of a prior proceeding against Obligor and protest or notice, except as provided for in the Agreement with respect to the Guaranteed Obligations. If at any time payment under the Agreement is rescinded or must be otherwise restored or returned by Counterparty upon the insolvency, bankruptcy or reorganization of Obligor or Guarantor or otherwise, Guarantor's obligations hereunder with respect to such payment shall be reinstated upon such restoration or return being made by Counterparty. **Guarantor hereby waives: (a) any right to assert against Counterparty as a defense, counterclaim, set-off or crossclaim, any defense (legal or equitable), counterclaim, set-off, crossclaim or other claim which Guarantor may now or at any time hereafter have against Obligor or any other party liable to Counterparty in any way or manner; and (b) any defense arising by reason of any claim or defense based upon an election of remedies by Counterparty which in any manner impairs, affects, reduces, releases, destroys or extinguishes Guarantor's subrogation rights, rights to proceed against Obligor for reimbursement, or any other rights of the Guarantor to proceed against Obligor or against any other person, property or security.**

Guarantor represents to Counterparty, as of the date hereof, that:

1. it is duly organized and validly existing under the laws of the jurisdiction of its incorporation and has full power and legal right to execute and deliver this Guaranty and to perform the provisions of this Guaranty on its part to be performed;

2. its execution, delivery and performance of this Guaranty have been and remain duly authorized by all necessary corporate action and do not contravene any provision of its certificate of incorporation or by-laws or any law, regulation or contractual restriction binding on it or its assets;

3. all consents, authorizations, approvals and clearances (including, without limitation, any necessary exchange control approval) and notifications, reports and registrations requisite for its due execution, delivery and performance of this Guaranty have been obtained from or, as the case may be, filed with the relevant governmental authorities having jurisdiction and remain in full force and effect and all conditions thereof have been duly complied with and no other action by, and no notice to or filing with, any governmental authority having jurisdiction is required for such execution, delivery or performance; and

4. this Guaranty is its legal, valid and binding obligation enforceable against it in accordance with its terms except as enforcement hereof may be limited by applicable bankruptcy,

insolvency, reorganization or other similar laws affecting the enforcement of creditors' rights or by general equity principles.

Any demand by Counterparty for payment hereunder shall be in writing, signed by a duly authorized representative of Counterparty and delivered to the Guarantor at the address set forth below, and shall (a) reference this Guaranty, (b) specifically identify Obligor, the nature of the default, the Guaranteed Obligations to be paid and the amount of such Guaranteed Obligations and (c) set forth payment instructions, including bank name, routing number and bank account number where payment of the Guaranteed Obligations is to be made. Guarantor shall pay, or cause to be paid, such Guaranteed Obligations within ten (10) business days of receipt of such demand.

Each of the provisions contained in this Guaranty shall be severable and distinct from one another and if one or more of such provisions are now or hereafter becomes invalid, illegal or unenforceable, the validity, illegality and enforceability of the remaining provisions of this Guaranty shall not in any way be affected, prejudiced or impaired thereby.

By accepting this Guaranty and entering into the Agreement, Counterparty agrees that Guarantor shall be subrogated to all rights of Counterparty against Obligor in respect of any amounts paid by Guarantor pursuant to this Guaranty, provided that Guarantor shall be entitled to enforce or to receive any payment arising out of or based upon such right of subrogation only to the extent that Counterparty has received all amounts payable by Obligor under the Agreement.

Guarantor may not assign its rights nor delegate its obligations under this Guaranty in whole or part, without prior written consent of Counterparty, and any purported assignment or delegation absent such consent is void. Counterparty may assign its rights under this Guaranty to Counterparty's permitted successors and assigns in accordance with the Agreement and applicable law.

The terms and provisions hereof may not be waived, altered, modified, or amended except in a writing executed by Guarantor and Counterparty.

This Guaranty shall be governed by and construed in accordance with the laws of the State of New York, without reference to its choice of law doctrine. All capitalized terms not otherwise defined herein shall have the respective meanings assigned to them in the Agreement.

Meta Platforms, Inc

By: R. Bryce Dalley
R. Bryce Dalley (Mar 26, 2025 08:30 PDT)

Name: Bryce Dalley
Title: Director, Commercial Energy Supply

Send written demand(s) to:
Laidley LLC
C/O Meta Platforms, Inc.
Clean Energy Asset Management

Attention: Bryce Dalley, Commercial Energy Supply
1 Meta Way
Menlo Park, CA 94025
and with a mandatory copy emailed to: energycontracts@meta.com
and to: energylegal@meta.com
and to: energy@meta.com